NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI BENCH (COURT-II)

CP(CAA)/58/2020

IN THE MATTER OF :

Priority Vendor Technologies Private Limited
15/1 Asaf Ali Road,
New Delhi 110002 **... Applicant/Transferor Company**

WITH

C2FO India Technologies Private Limited
2nd Floor Naman Centre, G Block Bandra-Kurla Complex
Bandra (East) Mumbai
Maharastra-400051 **...Non-Applicant /Transferee Company**

Section: 230-232 of the Companies Act, 2013

Order Delivered on: 25.09.2020

CORAM:

CH. MOHD. SHARIEF TARIQ MEMBER (J)
SHRI. L. N. GUPTA, HON'BLE MEMBER (T)

PRESENT:

For the Applicant : Ms. Karanveer Jindal and
Mr. Vipin Sharma, Advocates

ORDER

PER SHRI L. N. GUPTA, MEMBER (T)

This Company Petition filed by the Petitioner Company is coming before us for admission, fixing a date for hearing and final disposal of the Application as well as for a direction for publication to be effected and issuance of notices to the concerned authorities for objections, if any, to the Composite Scheme of Amalgamation (hereinafter for brevity referred to as "SCHEME") contemplated between the Applicant and Non-Applicant Companies.

2. Since there was a delay of 111 days in filing the Second Motion petition, the Applicant Company had preferred a separate CA - 509/2020 for condonation of delay. The same was allowed by this Bench subject to payment of cost.

3. As per the averments, the registered office of the Applicant Company is situated in Delhi, falling within the territorial jurisdiction of this Bench. However, the Registered office of the Non-Applicant Transferee Company is situated at Mumbai, therefore, it shall seek directions from the concerned Bench.

4. From the case record, it is seen that the First Motion seeking direction for dispensing the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors was filed before this Tribunal in CO APPL.(CAA)34/ND/2020 moved under Sections 230-232 of the Companies Act, 2013. Directions were issued by this Tribunal to dispense with the meetings of the Equity Shareholders of the Applicant Company on 19.02.2020. Since there was no Secured and Unsecured Creditor in the Applicant Company, the requirement of dispensing with their meetings did not arise.

5. It is submitted by the Applicant Company that they have obtained consent letters of all the Shareholders of the Companies to the proposed 'SCHEME'.

6. This Petition by way of Second Motion has come up before us for fixing a date of hearing as well as other consequential directions in terms of the provisions of the Section 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016 and it is now hereby Ordered as follows :

(i) The Petition stands Admitted.

(ii) The date of hearing of the Petition filed by the Applicant Transferor Company for approval of the Scheme is fixed for 18.11.2020.

(iii) Notice of the hearing shall be published in the newspapers namely, "Financial Express" in English and "Jansatta" (Delhi edition) in Hindi in not less than 10 days before the aforesaid date fixed for hearing.

7. In addition to publication of the above Public Notice, the Applicant Company shall individually serve the notice of this Petition to the following Authorities namely, (a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs, (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs, (c) the Income Tax Department, and (d) such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme at least 40 days before the date fixed for hearing of this Petition.

8. That the Applicant Company shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to the Newspaper publication effected as well as the service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

9. Objections, if any, to the "SCHEME" contemplated by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed, failing which it will be presumed by this Tribunal that there is no objection to approval of the "SCHEME" on the part of the Authorities and the same shall be approved subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder being satisfied.

-Sd-

(L. N. Gupta)
Member (T)

-Sd-

(Ch. Mohd. Sharief Tariq)
Member (J)